

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tyler Walls	Team: Squad #4	CCRB Case #: 202101798	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 03/17/2021 9:45 PM	Location of Incident: § 87(2)(e)	Precinct: 43	18 Mo. SOL 9/17/2022	EO SOL 9/17/2022	
Date/Time CV Reported Fri, 03/19/2021 11:58 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 03/19/2021 11:58 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			043 PCT
2. LT David Camhi	00000	939965	NARCBBX
3. DT3 Victor Defense	01120	941200	NARCBBX
4. DT3 James Causa	1852	950180	NARCBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Kyle Flood	6020	951738	NARCBBX
2. DT3 Luis Maldonado	01341	950810	NARCBBX
3. DT3 Paul Zaino	04702	926336	NARCBBX
4. DT3 Luilly Vargas	3471	948578	NARCBBX
5. DT2 Daniel Rivera	07978	927418	NARCBBX
6. UC 368		000000	NARCBBX

Officer(s)	Allegation	Investigator Recommendation
A.LT David Camhi	Force: Lieutenant David Camhi used physical force against § 87(2)(b)	
B.DT3 James Causa	Force: Detective James Causa used physical force against § 87(2)(b)	
C.LT David Camhi	Force: Lieutenant David Camhi used physical force against § 87(2)(b)	
D.LT David Camhi	Force: Lieutenant David Camhi used physical force against § 87(2)(b)	
E.DT3 James Causa	Force: Detective James Causa restricted § 87(2)(b) s breathing.	
F.LT David Camhi	Force: Lieutenant David Camhi restricted § 87(2)(b) s breathing.	
G. An officer	Discourtesy: An officer acted discourteously toward § 87(2)(b)	
§ 87(4-b) § 87(2)(g)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On March 19, 2021, § 87(2)(b) filed the following complaint with the CCRB in-person.

On March 17, 2021, at approximately 9:45 p.m., § 87(2)(b) his friend, § 87(2)(b) and § 87(2)(b) s two unidentified friends, all stood together smoking marijuana in the lobby of § 87(2)(e), in the Bronx. § 87(2)(e), § 87(2)(f) Shortly after, Lt. David Camhi, Det. Kyle Flood, Det. Victor Defense, Det. James Causa, Det. Luis Maldonado, Det. Paul Zaino, Det. Luilly Vargas, and Det. Daniel Rivera, all from Bronx Narcotics, entered the building. Lt. Camhi pushed § 87(2)(b) into § 87(2)(b) (**Allegation A: Force; § 87(2)(g)**). Lt. Camhi and Det. Causa then threw § 87(2)(b) on the ground and then punched him (**Allegations B – D: Force; § 87(2)(g)**). Lt. Camhi and Det. Causa placed their knees and boots into his back causing him to pass out for seven seconds (**Allegations E and F: Force; § 87(2)(g)**). One of the officers kicked § 87(2)(b) cell phone after it fell to the ground (**Allegation G: Discourtesy; § 87(2)(g)**). The officers took § 87(2)(b) and § 87(2)(b) back to the stationhouse. The officers charged § 87(2)(b) with § 87(2)(b). The officers charged § 87(2)(b) with § 87(2)(b).

§ 87(4-b) § 87(2)(g)

None of the officers wore body-worn camera (BWC). No video surveillance could be obtained for this case.

Findings and Recommendations

Allegation (A) Force: Lieutenant David Camhi used physical force against § 87(2)(b)

Allegation (B) Force: Detective James Causa used physical force against § 87(2)(b)

Allegation (C) Force: Lieutenant David Camhi used physical force against § 87(2)(b)

Allegation (D) Force: Lieutenant David Camhi used physical force against § 87(2)(b)

Allegation (E) Force: Detective James Causa restricted § 87(2)(b) s breathing.

Allegation (F) Force: Lieutenant David Camhi restricted § 87(2)(b) s breathing.

Allegation (G) Discourtesy: An officer acted discourteously toward § 87(2)(b)

§ 87(2)(b) testified that on March 17, 2022, at approximately 9:45 p.m., he and his friend, § 87(2)(b) smoked marijuana in the lobby of § 87(2)(e), in the Bronx, along with two other male individuals. § 87(2)(e), § 87(2)(f)

§ 87(2)(b) approximately nine plainclothes officers entered the lobby. Two officers each grabbed one of § 87(2)(b) arms. § 87(2)(b) told the officers that he was only § 87(2)(b) years old. One of the officers told § 87(2)(b) to shut up. Three officers pushed § 87(2)(b) from behind and into § 87(2)(b). § 87(2)(b) was pushed up to a door as a result. The officers held § 87(2)(b) pressed up against § 87(2)(b) for approximately seven seconds. Around five officers then grabbed § 87(2)(b) arms and threw him to the floor. While on the floor, § 87(2)(b) felt approximately three officers place their knees and boots on his back. § 87(2)(b) could not breathe for approximately five seconds. § 87(2)(b) felt several officers punching his body. § 87(2)(b) lost consciousness for approximately 10 – 20 seconds. § 87(2)(b) could not tell what exactly caused him to lose

consciousness. One of the officers told another officer to “lay off” him and to get his phone from the ground. The other officer said, “No, his phone can stay on the ground” and kicked § 87(2)(b) two phones on the ground. Approximately three or four officers continued to push § 87(2)(b) up against a wall. § 87(2)(b) told the officers to stop beating up § 87(2)(b) as he was only § 87(2)(b) old. The officers grabbed § 87(2)(b) arms and placed them behind his back while on the floor. The officers eventually asked § 87(2)(b) to stand up and to come to the wall. § 87(2)(b) stood up, came to the wall, as was handcuffed. The other officers placed § 87(2)(b) in handcuffs. The officers left § 87(2)(b) s friends alone and brought § 87(2)(b) and § 87(2)(b) into a police van. § 87(2)(b) was transported to the 43rd Precinct stationhouse. The officers transported § 87(2)(b) to the 41st Precinct stationhouse. § 87(2)(b) left the stationhouse later that day once his mother arrived. § 87(2)(b) went to the hospital at some point later. The doctors diagnosed him with a sprained neck (BR 01).

The investigation could not obtain a statement from § 87(2)(b) because § 87(2)(b) could not provide a number for him, and no contact information could be found via any searches.

Lt. Camhi testified that he was the supervisor for the buy-and-bust operation for this incident. § 87(2)(b)
§ 87(2)(f)

Immediately after the buy occurred, Lt. Camhi and the field team entered the lobby. Lt. Camhi does not recall how many officers were involved in the operation. The lobby’s area was large and as one went through the area, there were a set of two to three steps on the left side that led to a stairwell, which was the same on the right side. There was also a lobby level apartment with two small steps in front of the doorway which is where § 87(2)(b) and § 87(2)(b) stood. Upon entering the lobby, Lt. Camhi identified himself as an officer and displayed his badge. § 87(2)(b) reached into his pocket and left his hand inside. Lt. Camhi could not recall if § 87(2)(b) or § 87(2)(b) verbally responded to his actions. Lt. Camhi grabbed § 87(2)(b) s shirt and grabbed § 87(2)(b) with his other hand. Lt. Camhi could not recall where he grabbed § 87(2)(b) but believed that it was on the left-hand side of his body. § 87(2)(b) fell back into the stairs he sat on and fell into the closed door behind him. Lt. Camhi still held § 87(2)(b) when § 87(2)(b) fell back. Lt. Camhi stumbled forward into § 87(2)(b) but remained on his feet. Additional officers came at that point and engaged with § 87(2)(b) Lt. Camhi then turned his attention to § 87(2)(b) who had his hand in his pocket and was attempting to pull an object out. Lt. Camhi gave § 87(2)(b) multiple requests to provide his hands for cuffing. § 87(2)(b) attempted to pull away towards the direction of the entry door. Lt. Camhi feared that § 87(2)(b) was reaching for a weapon and conducted a controlled take down of § 87(2)(b) Lt. Camhi did not recall the exact position that § 87(2)(b) hit the ground. At this point, Detective Causa engaged § 87(2)(b) as well. Lt. Camhi did not recall what Detective Causa did to engage with § 87(2)(b) since his attention was squarely on § 87(2)(b) Lt. Camhi employed a single hand strike to § 87(2)(b) s left hand, which was still grasping the object, but finally released it after the strike. Lt. Camhi employed the hand strike with the intention of getting § 87(2)(b) s left hand out of his left pocket. Lt. Camhi was then able to pull § 87(2)(b) hand out of his pocket and rear cuff him. Lt. Camhi did not recall exactly where he grabbed § 87(2)(b) but recalled grabbing § 87(2)(b) hand back to meet his other hand. No officers other than Det. Causa assisted Lt. Camhi in handcuffing

§ 87(2)(b) Lt. Camhi did not employ any additional compliance strikes. Lt. Camhi did not remember kneeling on § 87(2)(b) or hearing him mention anything about him having trouble breathing. Lt. Camhi only remembered § 87(2)(b) saying, “I didn’t want to drop my phone.” The officers recovered a large phone from § 87(2)(b) on the scene. Lt. Camhi did not recall if the cell phone fell out of § 87(2)(b) pocket or if it was recovered when he first searched § 87(2)(b) Lt. Camhi did not recall if the cell phone was on the floor or in his pocket when they cuffed § 87(2)(b) Lt. Camhi did not recall any officers accidentally or intentionally kicking § 87(2)(b) phone. The officers brought § 87(2)(b) phone back to the precinct along with all of his property secured in a prison envelope which was returned to him when he was released. Once § 87(2)(b) was handcuffed, he was searched, removed from the location, and brought to the 43rd Precinct stationhouse for processing (BR 02).

§ 87(2)(e) Det. Causa and Lt. Camhi attempted to apprehend § 87(2)(b) Det. Causa did not recall what the other officers were doing at this time since he was focused on § 87(2)(b) The officers instructed § 87(2)(b) multiple times to take his hands out of his pocket, but he refused. Det. Causa deemed § 87(2)(b) as a threat due to his non-compliance and because he was identified as § 87(2)(e) which was already probable cause for a felony. Lt. Camhi struck § 87(2)(b) once on the arm with the hand in the pocket. § 87(2)(b) let go of what he held a few seconds later. Det. Causa and Lt. Camhi conducted a controlled takedown by putting § 87(2)(b) down on the ground to his side so he could be arrested. Lt. Camhi and Detective Causa grabbed his arms and guided him to the ground. The purpose of the controlled takedown was for the officers’ safety and for § 87(2)(b) own safety to make sure that he did not have anything else on his person. It took the officers approximately 30 – 45 seconds to place him in handcuffs. The officers did not take any other actions aside from grabbing his arms while § 87(2)(b) laid on the ground. Det. Causa and Lt. Camhi sat § 87(2)(b) up in a seated position and then picked him up off the ground. No other control strikes were done while § 87(2)(b) laid on the ground. § 87(2)(b) never mentioned any breathing problems while on the ground. Det. Causa did not see any signs of § 87(2)(b) having trouble breathing. Det. Causa did not know that § 87(2)(b) was § 87(2)(b) old at the time and does not recall him making any statements about his age (BR 03).

§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

§ 87(2)(e), § 87(2)(f)

Det. Rivera saw that the individuals were arrested but could not recall any details about how it transpired (BR 05).

Det. Flood and Det. Defense both testified that they were in the lead vehicle with Lt. Camhi. Upon arriving at the location, they both confirmed that they passed § 87(2)(b) and went to apprehend

§ 87(2)(b) who stood all the way at the back of the lobby. § 87(2)(b) did not resist and allowed himself to be handcuffed within seconds. Neither of them observed Lt. Camhi push § 87(2)(b) into § 87(2)(b) nor did they see any force used against § 87(2)(b) as they were focused on § 87(2)(b). They both did not see any officer kick § 87(2)(b) phone and did not do so themselves (BR 06 and 07).

Det. Vargas and Det. Maldonado both testified that they were in the prisoner van and six blocks away from the incident location. Once the field team apprehended § 87(2)(b) and § 87(2)(b) they were called to the scene. As a result, the officers did not witness any part of the apprehension and did not see any force used against either individual. Det. Vargas and Det. Maldonado did not see any officer kick § 87(2)(b) phone (BR 08 and 09).

Det. Zaino testified that he waited in his vehicle with another officer but could not recall which officer. Det. Zaino was the last person from the field team to arrive on scene and § 87(2)(b) and § 87(2)(b) were already in handcuffs. Thus, Det. Zaino did not see any portion of the arrest process (BR 10).

§ 87(2)(e), § 87(2)(f), § 87(2)(g)

§ 87(2)(b) medical records taken from § 87(2)(b) on § 87(2)(b), reveals that he went to the hospital for neck pain, chest pain, and issues with his breathing. The records show that § 87(2)(b) experienced neck trauma (BR 11).

The officers did not wear any BWC for this incident, and the building did not have any video surveillance (BR 13).

§ 87(2)(g)

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
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- Lt. Camhi has been a member of service for 16 years and has been a subject in four CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- Det. Causa has been a member of service for 11 years and has been a subject in four CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of December 10, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 17).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 4

Investigator:	<u>Tyler Walls</u> Signature	<u>Inv. Tyler Walls</u> Print Title & Name	<u>7/19/2022</u> Date
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Squad Leader:	<u>Raquel Velasquez</u> Signature	<u>IM Raquel Velasquez</u> Print Title & Name	<u>07/19/2022</u> Date
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Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date
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